

26STCP01852 26STCP01852

County: los-angeles

Division: Civil Law and Motion

Department: 836

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Case Number: 26STCP01852 Hearing Date: September 8, 2026 Dept: 836

MOTION FOR LEAVE TO FILE

SECOND AMENDED PETITION

MOTION TO SEAL CASE

Date: 9/8/26

(1:30 PM)

Case: Shalita

Ali v. Housing Authority of the City of Los Angeles, et al. (26STCP01852)

TENTATIVE RULING:

I.

BACKGROUND

Petitioner

Shalita Ali filed this action on May 15, 2026, seeking relief regarding the termination and suspension of her Section 8 Housing Choice Voucher. On May 18, 2026, Petitioner filed her operative first amended petition ("FAP") as a matter of right. The FAP names as respondents the Housing Authority of the City of Los Angeles ("HACLA"), David Nalbandyan, and LA Premier Property Management.

On May 22,

2026, Petitioner filed a Motion to Seal Residential Address Information and Redact Confidential Information. Petitioner requests that the Court redact her residential address from all current and future filings, because she is a

documented survivor of domestic violence and prior recipient of confidential shelter services.

On May 22, 2026, Petitioner lodged with the Court a Second Amended Petition for Writ of Mandate. On May 27, 2026, Petitioner filed a Motion for Leave to File a Second Amended Petition and to Add/Correct Respondent.

On June 1, 2026, Petitioner filed an Incorrect Name Amendment to her FAP, correctly re-identifying respondent LA Premier Property management as LAPIG-#11, LLC. The Court approved her amendment on that same date.

Petitioner has not filed proofs of service of her initial Petition, the operative FAP, or either of the instant motions.

II.

MOTION FOR LEAVE TO AMEND

Petitioner's Motion for Leave to File a Second Amended Petition is DENIED AS MOOT. As stated in her Notice of Motion, petitioner seeks leave to file a Second Amended Petition for Writ of Mandate "in order to add/or correct the name of Respondent: LAPIG-#11, LLC." (Notice of Mtn. at 1.) In her Memorandum of Points and Authorities in support of her Motion, petitioner explains that "LAPIG-#11, LLC is the ownership entity connected to the property and that amendment is necessary for clarify, accuracy, and complete adjudication of all issues before the Court." (Mem. at 1.)

As noted above, on June 1, 2026, the Court signed Petitioner's Order for Amendment to Complaint, ordering "the amendment approved and filed" to change the name of "LA Premier Property Management" to "LAPIG-#11, LLC." (6/1/26 Amendment.) Because the 6/1/26 Amendment achieved the asserted purpose for filing a Second Amended Petition, the instant Motion for leave to file such amended petition is MOOT.

To the

extent Petitioner seeks to amend the operative pleading for other purposes, the Court notes the requirements Petitioner must follow for so doing with respect to any future motion seeking leave to amend.

Pursuant to California Rules of Court, Rule 3.1324, a motion to amend a pleading must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Ct., rule 3.1324(a).)

Furthermore, a separate declaration must also accompany the motion and must specify: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier. (Cal. Rules of Ct., rule 3.1324(b).)

III.

MOTION TO SEAL

Petitioner's

Motion to Seal/Redact is DENIED WITHOUT PREJUDICE.

A court may order records to be filed under seal when the following conditions are met: "(1)[t]here exists an overriding interest that overcomes the right of public access to the record[s]; (2) [t]he overriding interest supports sealing the record[s]; (3) [a] substantial probability exists that the overriding interest will be prejudiced if the record[s] are not sealed; (4) [t]he proposed sealing is narrowly tailored; and (5) [n]o less restrictive means exist to achieve the overriding interest." (Cal. Rules of Ct., rule 2.550(d).) In ruling on a motion to seal, the court must identify (1) the specific information claimed to be entitled to protection from public disclosure, (2) the nature of the harm threatened by disclosure, and (3) any countervailing considerations. (H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 894.)

Therefore, in order to prevail on a motion to seal court records, the moving party must present a specific enumeration of the facts sought to be withheld and the specific reasons for

withholding them. (Id. at 904.) Here, while the Court takes seriously safety concerns as a valid basis for sealing, the Court notes that the incidents and proceedings on which petitioner relies to justify sealing of public records took place twenty-two years ago.

It is not apparent from Petitioner's showing thus far that sealing of court records, in whole or in part, is either permissible or warranted.

In addition, Petitioner's motion has not been served. Nor has petitioner lodged with the Court the proposed documents to be sealed, as is required by Rule of Court 2.551. For these reasons as well, the Court must deny the instant motion to seal.